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TREDT LEGISLATIVE HOUSE ACTS OF NOVEMBER

House of Representative of Members of Union



NOVEMBER 21, 2024

TREDT LEGISLATIVE HOUSE & HOUSE OF REPRESENTATIVES OF THE MEMBERS OF UNION
New Delhi, Delhi 110019

House of Representatives of the Members of Union State Government & State Formation Act, 2024

Preamble

Dated: 21/11/2024

This Act establishes the legal framework for the creation of a state and the formation of its government within the Union, ensuring a balance between the Union's sovereignty and the autonomy of states.

Articles and Articles

Article 1: Title, Scope, and Application

- Short Title: This Act may be cited as the State Government & State Formation Act, 2024.
- Scope: The Act applies to the Union and all existing and prospective territories seeking statehood.
- Application: It governs:
 - The criteria for the formation of a state.
 - The establishment and functioning of a state government.

Article 2: Criteria for State Formation

Territorial Requirements:

- A minimum geographical area of 100,00 sq. m.
- Clearly demarcated boundaries approved by the Union.

Population Requirements:

- A minimum population of 200 residents, as verified by the latest Union census.

Economic Viability:

- The region must demonstrate the ability to sustain governance through revenue generation, including taxation, trade, and industrial activities.
- A State Development Plan must be submitted, detailing strategies for infrastructure, education, healthcare, and economic growth.

Cultural and Administrative Identity:

- The region must show a distinct cultural, historical, or linguistic identity that necessitates statehood.
- The region must have at least one operational administrative headquarters capable of serving as the capital.

Article 3: Formation of the State Government

Government Structure:

- A state shall have a bicameral or unicameral legislature, as specified in its founding charter.
- The legislature shall comprise elected representatives, with 4 representatives for every districts.
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Executive Leadership:

- The Governor of State shall serve as the head of the state government.
- A Governor shall be elected by the residents of the state or be appointed by the President of Union if election results doesn't give a clear winner.

Election Procedures:

- Elections shall be conducted by the Union Election Commission within 4 days of state formation.

Minimum Requirements for Office Holders:

- Elected representatives must be citizens of the Union and residents of the state.
- They must meet educational qualifications as determined by the Union Electoral Code.

Judicial Oversight:

- The State shall be subjected to the Jurisdiction of the Imperial Court of Justice of TREDT and all of its branches for a period of 1 week.
- After the 1st week the state will be allowed to establish a State High Court shall be established, operating under the jurisdiction of the Imperial Court of Justice of TREDT.

Article 4: Responsibilities and Powers of the State Government

Legislative Powers:

- State shall be subjected to the TREDT Legislative House's Council of States of TREDT Union (Upper House) for a week.
- After the 1st week the State is allowed to establish a State Legislative Assembly.

Revenue Collection:

- States shall have the power to levy taxes on goods, services, property, and industries within their territories.

- State Assembly shall appoint a Tax & Revenue Magistrate who shall be the head of Tax and Revenue Department of the State.

Union Oversight:

- The state government must function within the framework of the Union Constitution.
- Failure to adhere to constitutional mandates may result in temporary suspension under President's Rule.

Interim Administration:

- A Union-appointed Provisional Administration shall govern the territory for up to 1 week until the state government is fully established.

Infrastructure Development:

- The Union shall allocate special funds to support infrastructure development in newly formed states during the transition period.

Article 6: Amendments and Revisions

- Any amendment to this Act requires approval by a two-thirds majority in both Houses of the TREDT Legislative House and the signature of the President of Union.

Article 7: Commencement

This Act shall come into effect on the very day it is passed, following its publication in the Official Gazette.

Presented to:

TREDT Legislative House – House of Representatives of the Members of Union

Presented By:

The Company's Worker's Party

Signatures & Witnesses

President of Union –

Central House Governor –

President of Central Council –